

26STLC02228 26STLC02228

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-22

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Case Number: 26STLC02228 Hearing Date: September 22, 2026 Dept: 26

TENTATIVE

RULING:

Defendant Lucky Elephant Couture,
LLC's (1) Demurrer to First Amended Complaint; and (2) Motion to Strike
Portions of First Amended Complaint, are placed off calendar.

Order

to Show Cause Re: Why this Action Should not be Reclassified as an Unlimited
Civil Action and Transferred to the Reclassification/Transfer Desk for Collection of Fees and Reassignment is
scheduled for 10/06/2026 at 8:30 am in Department 26 at the Spring Street
Courthouse.

Analysis:

On March

30, 2026, Plaintiff Ali Abdulhadi ("Plaintiff")
filed this action for (1) Unruh Civil Rights Act Cal. Civ. Code § 51-53; (2)
California Disabled Persons Act Cal. Civ. Code § 54.1; and (3) ADA 42 U.S.C. §
12181 et seq. The action is brought against Defendant Lucky Elephant
Couture, LLC ("Defendant"). Plaintiff filed a First Amended Complaint alleging
the same causes of action against Defendant on June 15, 2026. On August 17,
2026, Defendant filed the instant (1) Demurrer to First Amended Complaint; and
(2) Motion to Strike Portions of First Amended Complaint. Plaintiff filed a
joint opposition on September 8, 2026 and Defendant replied on September 15,
2026.

Plaintiff's First Amended

Complaint prays for the following relief: (1) a declaratory judgment that Defendant was in violation of specific requirements of Title III of the ADA described above, and the relevant implementing regulations of the Unruh Civil Rights Act, California Disabled Persons Act, and ADA; (2) a preliminary and permanent injunction pursuant to section 52.1 of the California Civil Code on behalf of Plaintiff enjoining Defendant from violating the Unruh Civil Rights Act and ADA and requiring Defendant to take the steps necessary to make rontomson.com readily accessible to and usable by visually-impaired individuals; (3) an award of costs and expenses; (4) an award of statutory minimum damages of \$4,000 per offense per person; and (4) attorneys' fees and expenses.

The declaratory and permanent injunctive relief sought in the First Amended Complaint cannot be awarded in the Limited Civil Court. (Code Civ. Proc., §§ 85, 86, 580(b)(2).) The Motion to Strike requested that the Court strike those requests for relief on this basis, but that is not the appropriate remedy when reclassification is available. (See Mot. to Strike, p. 4:20-5:17; see also Demurrer, p. 4:2-4.) The Court, therefore, places the hearing on the Demurrer and Motion to Strike off calendar and schedules an Order to Show Cause Re: Why this Action Should not be Reclassified as an Unlimited Civil Action and transferred to the Reclassification/Transfer Desk for Collection of Fees and Reassignment, for 10/06/2026 at 8:30 am in Department 26 at the Spring Street Courthouse.

Judicial Assistant to give notice.